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LEVENTHAL & KLEIN, LLP  
45 Main Street, Suite 820  
Brooklyn, New York 11201  
(718) 722-4100

Attorneys for Plaintiff HAROLD DODDS

UNITED STATES DISTRICT COURT  
EASTERN DISTRICT OF NEW YORK

FILED  
U.S. DISTRICT COURT  
EASTERN DISTRICT OF NEW YORK  
DEC 2 2005  
BROOKLYN OFFICE

DEARNE J.  
POLLAK, M.J.

-----X

HAROLD DODDS,

Plaintiff,

-against-

CITY OF NEW YORK and JOHN and JANE DOE 1  
Through 10, individually and in their official capacities,  
(the names John and Jane Doe being fictitious, as the true  
names are presently unknown),

Defendants,

COMPLAINT POLLAK, M.J.

Index No.

Jury Trial Demanded

-----X

Plaintiff HAROLD DODDS, by his attorneys, Leventhal & Klein, LLP, complaining of  
the defendants, respectfully alleges as follows:

**Preliminary Statement**

1. Plaintiff brings this action for compensatory damages, punitive damages and attorney's fees pursuant to 42 U.S. §1983 and 42 U.S. §1988 for violations of his civil rights, as said rights are secured by said statutes and the Constitution of the States of New York and the United States. Plaintiff also asserts supplemental state law claims.

**JURISDICTION**

2. This action is brought pursuant to 42 U.S.C. §§ 1983 and 1988, and the First, Fourth, Eighth and Fourteenth Amendments to the United States Constitution.

3. Jurisdiction is found upon 28 U.S.C. §§1331, 1343 and 1367.

**VENUE**

4. Venue is properly laid in the Eastern District of New York under U.S.C. § 1391(b), in that this is the District in which the claim arose.

**JURY DEMAND**

5. Plaintiff respectfully demands a trial by jury of all issues in this matter pursuant to Fed. R. Civ. P. 38 (b).

**PARTIES**

6. Plaintiff HAROLD DODDS is an African-American male, a citizen of the United States, and at all relevant times a resident of the City and States of New York.

7. Defendant CITY OF NEW YORK was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

8. Defendant CITY OF NEW YORK maintains the New York City Police Department, a duly authorized public authority and/or police department, authorized to perform all functions of a police department as per the applicable sections of the aforementioned municipal corporation, City of New York.

9. That at all times hereinafter mentioned, the individually named defendants JOHN and JANE DOE 1 Through 10 were duly sworn police officers of said department and were acting under the supervision of said department and according to their official duties.

10. That at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the States or City New York.

11. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant CITY OF NEW YORK.

12. Each and all of the acts of the defendant alleged herein were done by said defendants while acting in furtherance of their employment by defendant CITY OF NEW YORK.

### **FACTS**

13. On September 4, 2004, at approximately 5:30 p.m., plaintiff HAROLD DODDS was a lawful pedestrian standing in the vicinity of 897 Greene Avenue, County of Kings, City and State of New York.

14. At the aforesaid time and place, the defendants, members of the New York City Police Department, arrested the plaintiff for charges that were later dismissed and sealed. During the arrest of plaintiff inside the above location, plaintiff was unlawfully struck in the left eye by JOHN DOE 1 while in handcuffs. Plaintiff was subjected to a subsequent assault by other unknown police officers outside the above location, who also unnecessarily and unlawfully sprayed plaintiff with pepper spray, all while plaintiff was in handcuffs.

15. As a result of the above acts of brutality, plaintiff was brought by the defendants to Woodhull Hospital, where plaintiff was treated for the injuries caused by the defendants, including, among other things, a fracture of the left medial orbital wall.

16. As a result of the foregoing, plaintiff HAROLD DODDS sustained, *inter alia*, physical injuries, emotional distress, embarrassment, and humiliation, and deprivation of his constitutional rights.

**Federal Claims**

**AS AND FOR A FIRST CAUSE OF ACTION**

**(Deprivation of Rights under 42 U.S.C. § 1983)**

17. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "16" with the same force and effect as if fully set forth herein.

18. All of the aforementioned acts of defendants, their agents, servants and employee were carried out under the color of state law.

19. All of the aforementioned acts deprived plaintiff HAROLD DODDS of the rights, privileges and immunities guaranteed to citizens of the United States by the First, Fourth, Fifth, Eighth and fourteenth Amendments to the Constitution of the United of America, and in violation of U.S.C. 1983.

20. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, with the entire actual and/or apparent authority attendant thereto.

21. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

22. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

**AS AND FOR A SECOND CAUSE OF ACTION**

**(Excessive Force under 42 U.S.C. § 1983)**

23. Plaintiff repeats, reiterates, and realleges each and every allegation contained in

paragraphs numbered "1" through "22" with the same force and effect as if fully set forth herein.

24. The level of force employed by defendants was objectively unreasonable and in violation of plaintiff HAROLD DODDS' constitutional rights.

25. As a result of the aforementioned conduct of defendants, plaintiff HAROLD DODDS was subjected to excessive force and sustained physical injuries.

**AS AND FOR A THIRD CAUSE OF ACTION**  
**(Failure to Intervene under 42 U.S.C. § 1983)**

26. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "25" with the same force and effect as if fully set forth herein.

27. Defendants had an affirmative duty to intervene on behalf of plaintiff HAROLD DODDS, whose constitutional rights were being violated in their presence by other officers.

28. The defendants failed to intervene to prevent the unlawful conduct described herein.

29. As a result of the foregoing, plaintiff HAROLD DODDS was subjected to unlawful and excessive force. Further, plaintiff sustained severe and permanent physical injuries.

**AS AND FOR A FOURTH CAUSE OF ACTION**  
**(Deprivation of Substantive Due Process under 42 U.S.C. § 1983)**

30. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "29" with the same force and effect as if fully set forth herein.

31. The defendants conduct herein was an abuse of executive power so clearly unjustified by any legitimate objective of law enforcement as to be barred by the Fourteenth Amendment.

32. As a result of the foregoing, plaintiff HAROLD DODDS was deprived of his right

to substantive due process, causing severe and permanent emotional and physical injuries.

**AS AND FOR A FIFTH CAUSE OF ACTION**  
(Malicious Abuse of Process under 42 U.S.C. § 1983)

33. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "32" with the same force and effect as if fully set forth herein.

34. Defendants employed criminal process against plaintiff HAROLD DODDS by having him arraigned on criminal charges.

35. Defendants caused plaintiff HAROLD DODDS to be prosecuted in order to obtain a collateral objective outside the legitimate ends of the legal process, to wit: to cover up their acts of brutality.

**AS AND FOR AN SIXTH CAUSE OF ACTION**  
(Municipal Liability under 42 U.S.C. § 1983)

36. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "35" with the same force and effect as if fully set forth herein.

37. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

38. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York Police Department included, but were not limited to committing acts of brutality against individuals of African American descent and then committing perjury and/or manufacturing evidence in an effort to convict such individuals. In addition, the City of New York engaged in a policy, custom or practice of inadequate screening, hiring, retaining, training and supervising its employees that was the moving force behind the violation of plaintiff HAROLD DODDS' rights as described herein. As a result of the failure of the City of New

York to properly recruit, screen, train, discipline, and supervise its officers, including the individual defendants, defendant CITY OF NEW YORK has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.

39. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of plaintiff HAROLD DODDS.

40. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiff HAROLD DODDS as alleged herein.

41. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff HAROLD DODDS as alleged herein.

42. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department, plaintiff HAROLD DODDS was unlawfully beaten and otherwise subjected to physical abuse.

43. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating plaintiff HAROLD DODDS' constitutional rights.

44. All of the foregoing acts by defendants deprived plaintiff HAROLD DODDS of federally protected rights, including, but not limited to, the right:

- A. Not to be deprived of liberty without due process of law;
- B. To be free from malicious abuse of process;
- C. To be free from the use of excessive force and/or the failure to intervene.

45. As a result of the foregoing, plaintiff HAROLD DODDS is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury.

**Pendant State Law Claims**

46. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "45" with the same force and effect as if fully set forth herein.

47. Within ninety (90) days after the claim herein accrued, plaintiff duly served upon, presented to and filed with the City of New York, a Notice of Claim setting forth all facts and information required under the General Municipal Law 50-e.

48. The City of New York has wholly neglected or refused to make an adjustment or payment thereof and more than thirty (30) days have elapsed since the presentation of such claim as aforesaid.

49. This action was commenced within one (1) year and ninety (90) days after the cause of action herein accrued.

50. Plaintiff has complained with all conditions precedent to maintaining the instant action.

51. This action falls within one or more of the exceptions as outlined in C.P.L.R. 1602.

**AS AND FOR A SEVENTH CAUSE OF ACTION**  
**(Assault under the laws of the State of New York)**

52. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered "1" through "51" with the same force and effect as if fully set forth herein.

53. As a result of the foregoing, plaintiff HAROLD DODDS was placed in



apprehension of imminent harmful and offensive bodily contact.

54. As a result of defendant's conduct, plaintiff HAROLD DODDS has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment, and humiliation.

**AS AND FOR A EIGHTH CAUSE OF ACTION**  
**(Battery under the laws of the State of New York)**

55. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered "1" through "54" with the same force and effect as if fully set forth herein.

56. Defendants made offensive contact with plaintiff without privilege or consent.

57. As a result of defendant's conduct, plaintiff HAROLD DODDS has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment, and humiliation.

**AS AND FOR A NINTH CAUSE OF ACTION**  
**(Malicious Abuse of Process under the laws of the State of New York)**

58. Plaintiff repeats, repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "57" with the same force and effect as if fully set forth herein.

59. Defendant police officers issued legal process to place plaintiff HAROLD DODDS under arrest.

60. Defendant police officers arrested plaintiff HAROLD DODDS to obtain a collateral objective outside the legitimate ends of the legal process.

61. Defendant police officers acted with intent to do harm to plaintiff HAROLD DODDS, without excuse or justification.

62. As a result of the aforementioned conduct, plaintiff HAROLD DODDS suffered physical and mental injury, together with embarrassment, humiliation, shock, fright, and loss of freedom.

**AS AND FOR A TENTH CAUSE OF ACTION**  
**(Intentional Infliction of Emotional Distress under the laws of the State of New York)**

63. Plaintiff repeats, reiterates and each and every allegation contained in paragraphs numbered "1" through "62" with the same force and effect as if fully set forth herein.

64. The aforementioned conduct was extreme and outrageous, and exceeded all reasonable bounds of decency.

65. The aforementioned conduct was committed by defendants while acting within the scope of their employment by defendant CITY OF NEW YORK.

66. The aforementioned conduct was committed by defendants while acting in furtherance of their employment by defendant CITY OF NEW YORK.

67. The aforementioned conduct was intentional and for the sole purpose of causing severe emotional distress to plaintiff HAROLD DODDS.

68. As a result of the aforementioned conduct, plaintiff HAROLD DODDS suffered severe emotional distress, physical and mental injury, together with embarrassment, humiliation, shock, fright, and loss of freedom.

**AS AND FOR A ELEVENTH CAUSE OF ACTION**  
**(Negligent Screening, Hiring, and Retention under the laws of the State of New York)**

69. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraph numbered "1" through "68" with the same force and effect as if fully set forth herein.

70. Upon information and belief, defendant City of New York failed to use reasonable care in the screening, hiring and retention of the aforesaid defendants who conducted and participated in the arrest of plaintiff HAROLD DODDS.

71. Defendant City of New York knew, or should have know in the exercise of reasonable care, the propensities of the individual defendants to engage in the wrongful conduct heretofore alleged in this Complaint.

**AS AND FOR A TWELFTH CAUSE OF ACTION**  
**(Negligent Training and Supervision under the laws of the State of New York)**

72. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "71" with the same force and effect as if fully set forth herein.

73. Upon information and belief the defendant City of New York failed to use reasonable care in the training and supervision of the aforesaid defendants who conducted and participated in the arrest of plaintiff HAROLD DODDS.

**AS AND FOR A THIRTEENTH CAUSE OF ACTION**  
**(Negligence under the laws of the State of New York)**

74. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "73" with the same force and effect as if fully set forth herein.

75. Plaintiff's injuries herein were caused by the carelessness, recklessness and negligence of the defendant City of New York and its employees and agents, who were on duty and acting in the scope of their employment when they engaged in the wrongful conduct described herein.

**AS AND FOR A FOURTEENTH CAUSE OF ACTION**  
**(Respondeat Superior liability under the laws of the State of New York)**

76. Plaintiff repeats, reiterates and realleges each and every allegation contained in

paragraphs numbered "1" through "75" with the same force and effect as if fully set forth herein.

77. Defendant City of New York is vicariously liable for the acts of its employees and agents who were on duty and acting in the scope of their employment when they engaged in the wrongful conduct described herein.

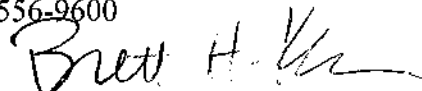
78. As a result of the foregoing, plaintiff HAROLD DODDS is entitled to compensatory damages in amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

**WHEREFORE**, plaintiff HAROLD DODDS demands judgment and prays for the following relief, jointly and severally, against the defendants:

- (A) full and fair compensatory damages in an amount to be determined by a jury;
- (B) punitive damages in an amount to be determined by a jury;
- (C ) reasonable attorney's fees and the costs and disbursements of this action; and
- (D) such other and further relief as appears just and proper.

Dated: Brooklyn, New York  
December 1, 2005

LEVENTHAL & KLEIN, LLP  
45 Main Street, Suite 820  
Brooklyn, New York 11201  
(718) 556-9600

By:   
BRETT H. KLEIN (BK4744)

Attorneys for Plaintiff HAROLD DODDS